

UNITED STATES BANKRUPTCY COURT SOUTHERN DISTRICT OF FLORIDA



Clerk's Instructions for Filing Documents Under SEAL

Pursuant to Local Rule 9018-1, requests seeking authorization by the court for filing documents under seal shall be filed electronically by registered CM/ECF users with full filing privileges and conventionally by all other filers, including registered CM/ECF users with limited electronic filing privileges. No party may file a document under seal without a court order.

A document filed under seal is restricted and will not be accessible for public viewing. However, the corresponding docket text entry will be viewable. Only the judge and designated court staff will have electronic access to view a document under seal.

Orders denying requests to seal documents will set forth the manner in which the filed documents will be disposed.

CONVENTIONAL FILING PROCEDURES

Submit the following:

- Local Form "[Cover Sheet to Accompany Nonelectronic Documents Submitted for Sealing or in Camera Review](#)" shall accompany any document submitted for sealing.
- **Motion** for leave to file a document under seal.
[If the motion itself must be sealed, the requested relief must be included in the motion and indicated on the local form cover sheet.]
- **Sealed document** must be placed in a securely sealed envelope/box clearly marked with the warning **DOCUMENT UNDER SEAL**. Compliance with this provision is required.

NOTE: Sealed documents being filed pursuant to a previously entered court order must be accompanied by Local Form "[Cover Sheet to Accompany Nonelectronic Documents Submitted for Sealing or in Camera Review](#)" along with a copy of the order directing sealing (unless the order itself is sealed).

ELECTRONIC FILING PROCEDURES

Submit the Following:

- **Motion** for leave to file a document under seal must be filed by selecting the CM/ECF event: **Seal**, which can be located under *Bankruptcy or Adversary >Motions/Applications* menu. Display prompts that are selected during the filing of the motion will determine whether the motion itself will also be sealed.
- **Proposed Order** - After filing the motion, a proposed order must be uploaded in electronic format (PDF) using the E-orders program in CM/ECF.
- **Sealed document** shall be filed by selecting the CM/ECF event: **Sealed Document**, which can be located under *Bankruptcy or Adversary >Other menu*. A notice of electronic filing (NEF) containing the docket text entry will be sent to all registered CM/ECF case-specific participants. However, only the judge and designated Clerk's Office staff will have access to view the sealed document.
- **Sealed Document Event** requires the linking of the sealed document to a previously filed motion for leave to file a document under seal or a prior order.
- **Sealed Document Event** must also be selected when filing a sealed document pursuant to a prior court order authorizing the document to be filed under seal.

**** IMPORTANT ** FAILURE TO FILE A SEALED DOCUMENT USING THE CM/ECF EVENT CODES SPECIFICALLY DEDICATED FOR FILING SUCH DOCUMENTS WILL RESULT IN THE DOCUMENT BEING PLACED ON THE COURT DOCKET AND VIEWABLE TO THE PUBLIC.**

Dedicated CM/ECF Events:

- **Seal** (located under - *Bankruptcy/Adversary>Motions/Applications*)
Purpose: For filing a Motion to File Document Under Seal [prompts will allow motion to be filed Sealed or Unsealed]
- **Unseal** (located under - *Bankruptcy/Adversary>Motions/Applications*)
Purpose: For filing a Motion to Unseal a Sealed Document
- **Sealed Document** (located under *Bankruptcy/Adversary>Other*)
Purpose: For filing a Sealed Document [Not Available for Public Viewing].

RED SCREENS:

To ensure that the correct CM/ECF event code is selected when filing a **SEALED** document, the docket entry screen will turn **RED** during the filing process prior to the final submit screen being selected. If the screen **DOES NOT** turn red, immediately **STOP** and begin the filing process over.



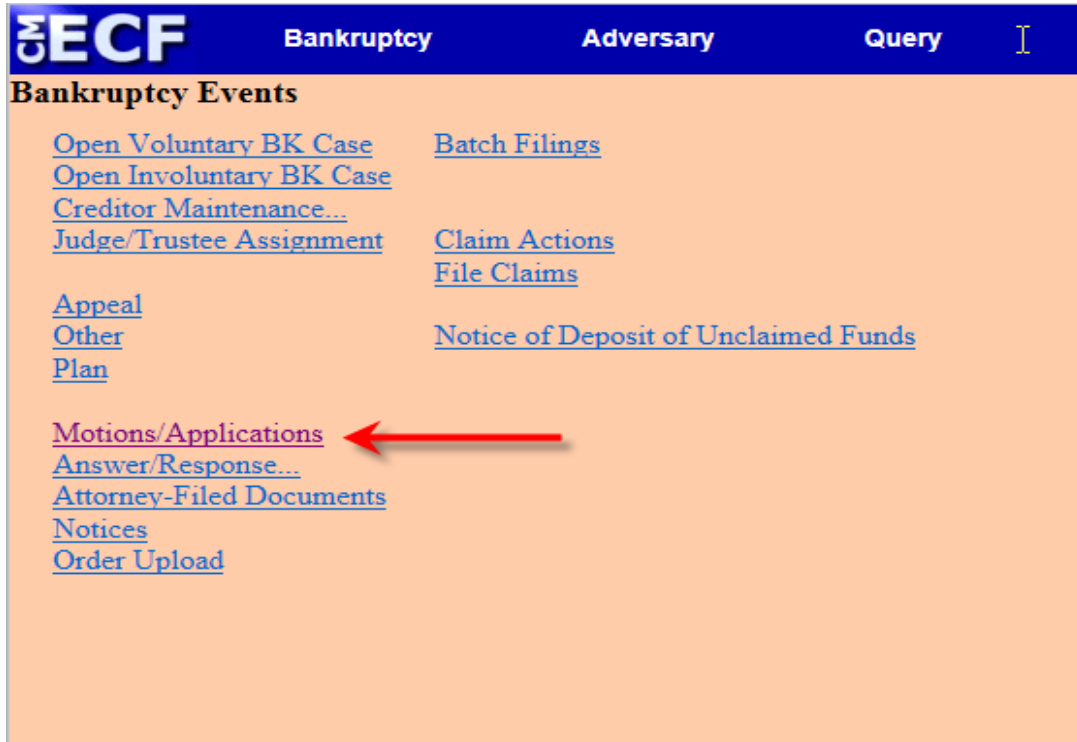
SUMMARY

E-FILED SEALED DOCUMENTS IN PUBLIC/NON-SEALED CASES

- *Use only the dedicated CM/ECF events as indicated on page three of these procedures. Usage of any other CM/ECF event will result in the document being placed on the court docket and available for public viewing.*
- *Only the judge and designated court staff will have electronic access to view Sealed Document(s).*
- *Although case-specific CM/ECF registered users will receive a Notice of Electronic Filing (NEF) of the filing of a Sealed Document(s), no party will be able to electronically access the actual PDF image of the sealed document through CM/ECF or ECF/PACER.*
- *A document filed under seal will remain sealed by order of the court.*
- *When selecting the correct CM/ECF event code for filing sealed document(s), the docket entry screen will turn **RED** during the filing process. If the screen DOES NOT turn **RED**, immediately **STOP** and begin the filing process over.*
- *The Sealed Document event requires the linking of the sealed document to a previous entry on the court docket. **USE CAUTION** when creating a link/relationship to a docket entry and in naming a PDF document, as this could reveal sealed information in the new public docket entry.*

MOTION TO SEAL

1. Under Bankruptcy/Adversary category. Select the menu: Motions/Applications



The screenshot shows the ECF (Electronic Case Filing) interface. The top navigation bar includes 'Bankruptcy', 'Adversary', 'Query', and a search icon. Below the bar, the 'Bankruptcy Events' section lists various filing options. A red arrow points to the 'Motions/Applications' link, which is highlighted in purple. Other links include 'Open Voluntary BK Case', 'Open Involuntary BK Case', 'Creditor Maintenance...', 'Judge/Trustee Assignment', 'Batch Filings', 'Claim Actions', 'File Claims', 'Appeal', 'Other Plan', 'Notice of Deposit of Unclaimed Funds', 'Answer/Response...', 'Attorney-Filed Documents', 'Notices', and 'Order Upload'.

2. Enter the case number. Click **[Next]**.



The screenshot shows the 'File a Motion' screen in the ECF interface. The top navigation bar includes 'Bankruptcy', 'Adversary', 'Query', and 'Reports'. Below the bar, the 'File a Motion' section contains a 'Case Number' input field with the text '1:19-bk-10002'. Below the input field are two buttons: 'Next' and 'Clear'. The 'Next' button is highlighted with a yellow border.

3. Select the appropriate event. Click **[Next]**.

File a Motion:

16-10051-RAM Jack Daniels and Jill Daniels

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: n Judge: RAM Case Flag: IFP, SEALEDDOC

Note: For Multi-Part Motions, Ctrl-Click on the Relief Types in the Order that they Appear in the Pleading.

Start typing to find another event. Hold down Ctrl to add additional items.

Available Events (click to select events)

Reopen Ch 11 Case	Select
Reopen Ch 12 Case	
Reopen Ch 13 Case	
Reopen Ch 7 Case	
Request by Lender for Referral of Debtor to Loss Mitigation Mediation	
Revoke Order Waiving Chapter 7 Filing Fee	
Sanctions	
Seal	
Sell	
Set Hearing	
Set Plan and Disclosure Statement Deadline	
Set Status Conference	
Setting Property Value	
Shorten Prejudice Period	
Shorten Time	

Next Clear

4. Select the filer(s). Click **[Next]**.

ECF Bankruptcy Adversary Query Reports

File a Motion:

19-10002 Linda Lane

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Case Flag: CounDue

Select the Party:

Lane, Linda [Debtor]	Add/Create New Party
Office of the US Trustee, [U.S. Trustee]	

Next Clear

5. A display message will appear regarding Highly Sensitive Documents. Click **[Next]**

File a Motion:

[19-10002-AJC Linda Lane](#) Closed 07/01/2019

Type: bk	Chapter: 7 v	Office: 1 (Miami)
Assets: y	Debtor disposition: Dismissed for failure to pay filing fee and to file information	Judge: AJC

Case Flag: CounDue,
SEALEDDOC, CLOSED

**WARNING: If This Motion Should be Filed as a Highly Sensitive Document About the
Transaction and Refer to [\[AO 2024-04\]](#) For Filing Instructions**

IF YOU ARE FILING A MOTION TO SEAL CLICK NEXT

6. Attach your PDF document(s). Click **[Next]**

ECF Bankruptcy Adversary Query Reports Utilities Search i Proce

Docket Sheet Claims Register List of Creditors Deadlines/Hearings Calendar Events

File a Motion:

[19-10002-AJC Linda Lane](#)

Type: bk	Chapter: 7 v	Office: 1 (Miami)
Assets: y	Judge: AJC	Case Flag: CounDue, SEALEDDOC

***WARNING* Do Not Attach the Document to be Sealed as an Exhibit/Attachment to the Motion.**

***NOTE* The File Name(s) of the Uploaded PDF(s) will Appear on the NEF and Court Docket.**

You Must Attach Local Form Cover Sheet LF-72.

Date filed

Document number assignment:

☒ Automatically assign number
☐ Enter other document number

Filename

Attachments to Document: ☒ No ☐ Yes

7. Select the applicable radio button. Click **[Next]**

ECF Bankruptcy Adversary Query Reports Utilities

File a Motion:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)

Assets: y Case Flag: CounDue

IMPORTANT: Are you Requesting the Contents of This Motion to be **SEALED** From Public Viewing?

☐ Yes

☐ No

Next Clear

8. If No, proceed to final docket text entry, absent the red screens. Click **[Next]**

ECF Bankruptcy Adversary Query Reports Utilities Search

Logout

File a Motion:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)

Assets: y Case Flag: CounDue

This Motion will **NOT** be **SEALED** and **WILL** be Available for Public Viewing.

If This Motion should be filed under seal, immediately abort the transaction by selecting the *Bankruptcy* menu option and begin the filing process over.

Next Clear

9. If Yes to 7. above; the following message is displayed. Click [Next]

File a Motion:

[19-10002-AJC Linda Lane](#) Closed 07/01/2019

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Debtor disposition: Dismissed Judge: AJC
for failure to pay filing fee and to
file information

Case Flag: CounDue,
SEALEDDOC, CLOSED

This Motion will be **SEALED** and will **NOT** be Available for Public Viewing. Only the Judge, designated Court Staff, and any other Party as Ordered by the Court will have access to view this document.

IMMEDIATELY AFTER FILING THIS MOTION:

1. File the **SEALED** document separately selecting the SEALED DOCUMENT event located under the menu option - *Bankruptcy>Other*, and
2. Upload a Proposed Order (via E-Orders) in accordance with Local Rule 9018-1.

10. Initial Red Display Message Screen. Click [Next].

ECF Bankruptcy Adversary Query Reports Utilities Logout

File a Motion:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Case Flag: CounDue

CASE PARTICIPANTS WILL NOT HAVE ACCESS TO THIS SEALED DOCUMENT.

11. Docket Text: Modify as Appropriate. Click [Next].

The screenshot shows the ECF system interface. At the top is a blue navigation bar with the ECF logo and links for Bankruptcy, Adversary, Query, Reports, and Utilities. Below this is a red header area with 'Search' and 'Logout' links. The main content area is red and contains the text 'File a Motion:'. Below this, the case details are displayed: '19-10002 Linda Lane', 'Type: bk', 'Assets: y', 'Chapter: 7 v', 'Case Flag: CounDue, SEALEDDOC', and 'Office: 1 (Miami)'. A yellow box contains the docket text: 'Docket Text: Modify as Appropriate. Motion to File Document UNDER SEAL. This Document is **NOT** Available for Public Viewing. [text box] Filed by Debtor Linda Lane . (Cervino-Garcia, Maria)'. At the bottom are 'Next' and 'Clear' buttons.

12. Final Docket Text. Click [Next].

The screenshot shows the ECF system interface for the final step. The navigation bar and header are the same as in the previous screenshot. The main content area is red and contains the text 'File a Motion:'. Below this, the case details are displayed: '19-10002 Linda Lane', 'Type: bk', 'Assets: y', 'Chapter: 7 v', 'Case Flag: CounDue', and 'Office: 1 (Miami)'. A yellow box contains the docket text: 'Docket Text: Final Text Motion to File Document UNDER SEAL. This Document is **NOT** Available for Public Viewing. Filed by Debtor Linda Lane. (Cervino-Garcia, Maria)'. Below the yellow box is a red warning message: 'Attention!! Submitting this screen commits this transaction. You will have NO further opportunity to modify this submission if you continue.' At the bottom are 'Next' and 'Clear' buttons.

13. Notice of Electronic Filing [NEF].

ECF		
Bankruptcy	Adversary	Query
Reports	Utilities	Search

File a Motion:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Case Flag: CounDue

U.S. Bankruptcy Court
Southern District of Florida

Notice of Electronic Filing :

The following transaction was received from Maria Cervino-Garcia entered on 3/26/2019 at 9:04 AM EDT and filed on 3/26/2019

Case Name: Linda Lane
Case Number: [19-10002](#)
Document Number: [3](#)

Docket Text:
Motion to File Document UNDER SEAL. This Document is **NOT** Available for Public Viewing. Filed by Debtor Linda Lane. (Cervino-Garcia, Maria)

The following document(s) are associated with this transaction:

Document description:Main Document
Original filename:G:\CM-ECF Implementation\CM-ECF Common Docs\CM-ECF TEST DOCS\!Test Document.pdf

Electronic document Stamp:
[STAMP bkecfStamp_ID=1068065210 [Date=3/26/2019] [FileNumber=148754-0]
[3c5c704bba187f1ddddd1b38d2d14b008573be4fa563a6fcce6ca5ca805c32289b54
57e40bbfb6905180634f1f5a6da5339b5866ba858bd9949913749e7d0d39]]

19-10002 Notice will be electronically mailed to:

Maria Cervino-Garcia on behalf of Debtor Linda Lane
maria_cervino@flsb.uscourts.gov

19-10002 Notice will not be electronically mailed to:

Office of the US Trustee
51 SW 1 Ave No. 1204
Miami, FL 33130

SEALED DOCUMENT [NOT AVAILABLE FOR PUBLIC VIEWING]

The ***Sealed Document*** event will require linkage to a Motion to Seal or to a previously entered order.

1. Under Bankruptcy/Adversary category. Select the menu: **Other**

The screenshot shows the 'Bankruptcy Events' menu. A red arrow points to the 'Other' link, which is highlighted. The menu includes the following links:

- Open Voluntary BK Case
- Open Involuntary BK Case
- Creditor Maintenance...
- Judge/Trustee Assignment
- Appeal
- Other** (highlighted with a red arrow)
- Plan
- Motions/Applications
- Answer/Response...
- Attorney-Filed Documents
- Notices
- Order Upload
- Batch Filings
- Claim Actions
- File Claims
- Notice of Deposit of Unclaimed Funds

2. Select the appropriate event. Click **[Next]**

Miscellaneous

[19-10002-AJC Linda Lane](#) Closed 07/01/2019

Type: bk Chapter: 7 v Office: 1 (Miami)

Assets: y Debtor disposition: Dismissed Judge: AJC
for failure to pay filing fee and to
file information

Case Flag: CounDue,
SEALEDDOC, CLOSED

Available Events (click to select an event)

- Request for Transcript Re: Motion to Withdraw Reference
- Rescission of Reaffirmation Agreement
- Rule 1019 Report
- Sanctions/Fine Payable to the Court
- Satisfaction of Judgment
- Schedules/Statements or Amended Schedules/Statements
- Sealed Document**
- Statement About Payment Eviction
- Statement Re: Pending Proceedings Re: Section 522(q)(1)
- Statement in Support of Reaffirmation Agreement
- Statement of Anticipated Increase in Income/Expenses
- Statement of Assistance
- Statement of Exemption from Presumption of Abuse Under Sec 707(b)
- (2)Form 122A-1Supp
- Statement of Good Faith Filing
- Statement of Initial Eviction Judgment B101A
- Statement of Intention

Selected Event

Sealed Document

Next Clear

3. Select the filer(s). Click **[Next]**.

ECF Bankruptcy Adversary Query

Miscellaneous:

19-10002 Linda Lane

Type: bk Chapter: 7 v Office:
Assets: y Case Flag: CounDue, SEALEDDOC

Select the Party:

Lane, Linda [Debtor]
Office of the US Trustee, [U.S. Trustee]

[Add/Create New Party](#)

Next Clear

4. The following display message will appear. Click **[Next]**

Miscellaneous:

19-10002-AJC Linda Lane Closed 07/01/2019

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Debtor disposition: Dismissed Judge: AJC
for failure to pay filing fee and to
file information

Case Flag: CounDue,
SEALEDDOC, CLOSED

WARNING! DO NOT DOCKET A HIGHLY SENSITIVE DOCUMENT ELECTRONICALLY.

REFER TO [\[AO 2024-04\]](#) FOR DELIVERY INSTRUCTIONS.

Click Next ONLY if you are Filing a Sealed Document!

Next Clear

5. Attach your PDF document(s). Click **[Next]**

ECF Bankruptcy Adversary Query Reports Utilities Se

Miscellaneous:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)

Assets: y Case Flag: CounDue, SEALEDDOC

WARNING! The File Name(s) of the Uploaded PDF(s) will Appear on the NEF and Court Docket.

Filename Browse...

Attachments to Document: ☒ No ☐ Yes

Next Clear

6. The following display message will appear:

ECF Bankruptcy Adversary Query Reports Utilities Se

Miscellaneous:

[19-10002-AJC Linda Lane](#) Closed 07/01/2019

Type: bk Chapter: 7 v Office: 1 (Miami)

Assets: y Debtor disposition: Dismissed Judge: AJC
for failure to pay filing fee and to file information

Case Flag: CounDue, SEALEDDOC, CLOSED

This Document will be SEALED and will NOT be Available for Public Viewing. Only the Judge, and designated Court Staff, and any other Party as Ordered by the Court will have access to view this document.

Next Clear

NOTE: Initial **RED** Display Message Screen will appear.

7. Select the appropriate docket entry(s) (e.g., motion to seal, prior order) to which your sealed document relates. Click **[Next]**

ECF Bankruptcy Adversary Query Reports Utilities Se

Miscellaneous:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)

Assets: y Case Flag: CounDue, SEALEDDOC

Select the appropriate event(s) to which your event relates:

☒ 03/26/2019 3 Motion to File Document UNDER SEAL. This Document is **NOT** Available for Public Viewing. Filed by Debtor Linda Lane. (Cervino-Garcia, Maria)

Next Clear

8. Click [Next]

ECF Bankruptcy Adversary Query Reports Utilities Search Logout

Miscellaneous:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Case Flag: CounDue, SEALEDDOC

Docket Text: Modify as Appropriate.

Sealed Document. This Document is Sealed and will **NOT** be Available for Public Viewing Filed by Debtor Linda Lane (Re: [7] Motion to File Document UNDER SEAL. This Document **WILL** be Available for Public Viewing. filed by Debtor Linda Lane). (Cervino-Garcia, Maria)

Next Clear

9. Final Docket Text. Click [Next]

ECF Bankruptcy Adversary Query Reports Utilities
Search Logout

Miscellaneous:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Case Flag: CounDue, SEALEDDOC

Docket Text: Final Text

Sealed Document. This Document is Sealed and will **NOT** be Available for Public Viewing Filed by Debtor Linda Lane (Re: [3] Motion to File Document UNDER SEAL. This Document is **NOT** Available for Public Viewing. filed by Debtor Linda Lane). (Cervino-Garcia, Maria)

Attention!! Submitting this screen commits this transaction. You will have NO further opportunity to modify this submission if you continue.

Next Clear

10. Notice of Electronic Filing [NEF]

ECF Bankruptcy Adversary Query Reports Utilities
Search Logout

Miscellaneous:

[19-10002 Linda Lane](#)

Type: bk Chapter: 7 v Office: 1 (Miami)
Assets: y Case Flag: CounDue, SEALEDDOC

**U.S. Bankruptcy Court
Southern District of Florida**

Notice of Electronic Filing

The following transaction was received from Maria Cervino-Garcia entered on 3/26/2019 at 9:26 AM EDT and filed on 3/26/2019

Case Name: Linda Lane
Case Number: 19-10002
Document Number: 4

Docket Text:
Sealed Document. This Document is Sealed and will **NOT** be Available for Public Viewing Filed by Debtor Linda Lane (Re: [3] Motion to File Document UNDER SEAL. This Document is **NOT** Available for Public Viewing. filed by Debtor Linda Lane). (Cervino-Garcia, Maria)

The following document(s) are associated with this transaction:

Document description: Main Document
Original filename: G:\CM-ECF Implementation\CM-ECF Common Docs\CM-ECF TEST DOCS\Test Document.pdf
Electronic document Stamp:
[STAMP bkcfStamp_ID=1068065210 [Date=3/26/2019] [FileNumber=148757-0]
[86f83f2bc84f8db59af976b9b4bc67383fde070e22b63049f7e613c8ba0f7693900
25d493006e9ba6d84899d22f351b426537b9dbf3fb3be637868de78b3ecb]]

19-10002 Notice will be electronically mailed to:
Maria Cervino-Garcia on behalf of Debtor Linda Lane
maria_cervino@flsb.uscourts.gov

19-10002 Notice will not be electronically mailed to:
Office of the US Trustee
51 SW 1 Ave No. 1204
Miami, FL 33130